

[9 & 10 GEO. 5.] *Local Government Board's* [Ch. lxxviii.]
Provisional Order Confirmation (No. 4) Act, 1919.



CHAPTER lxxviii.

An Act to confirm a Provisional Order of the Local A.D. 1919.
Government Board relating to the Counties of Chester —
and Lancaster. [15th August 1919.]

WHEREAS the Local Government Board have made the
Provisional Order set forth in the schedule hereto under
the provisions of the Local Government Act 1888:

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Order should be
confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Order as altered and set out in the schedule hereto Order in
shall be and the same is hereby confirmed and all the provisions schedule
thereof shall have full validity and force. confirmed.

2. This Act may be cited as the Local Government Board's Short title.
Provisional Order Confirmation (No. 4) Act 1919.

A.D. 1919.

SCHEDULE.

COUNTIES OF CHESTER AND LANCASTER.

*Chester and
Lancaster
Order.*

*Provisional Order made in pursuance of the Local Government
Act 1888 for altering the Boundary between Counties.*

To the justices of the peace for the county of Chester in quarter sessions assembled;—

To the county council of Chester;—

To the justices of the peace for the county palatine of Lancaster in quarter sessions assembled;—

To the county council of the county palatine of Lancaster;—

To the urban district council of Irlam;—

To the rural district councils of Barton-upon-Irwell Bucklow and Warrington;—

To the guardians of the poor of the Barton-upon-Irwell Bucklow and Warrington unions;—

To the parish councils of Carrington Flixton Partington Rixton with Glazebrook and Warburton;—

To the overseers of the poor of the several parishes or townships of Carrington Flixton Irlam Partington Rixton with Glazebrook and Warburton;—

And to all others whom it may concern.

WHEREAS by section 54 of the Local Government Act 1888 the Local Government Board are empowered to make a Provisional Order for altering the boundary of any county and by such Order to divide or alter any electoral division:

And whereas the several parishes or townships named in column 1 of Part I. of the schedule to this Order are wholly situate in the administrative county of Chester and the several townships named in column 1 of Part II. of that schedule are wholly situate in the administrative county palatine of Lancaster and those parishes or townships are respectively included in or comprise as the case may be the union the urban or rural district the electoral division the petty sessional division and the coroner's district the name of which is set opposite to the name of the parish or township in columns 2 3 4 5 and 6 of the said schedule:

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And whereas a representation has been made to Us the Local Government Board by the county council of the county palatine of Lancaster that it is desirable that the common boundary between that county and the county of Chester should be altered in the manner hereinafter set forth:

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Now therefore We the Local Government Board in pursuance of the powers given to Us by sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect:—

51 & 52 Vict.
c. 41.

Art. I. In this Order—

Definitions.

- (1) The expression "the commencement of this Order" means the first day of April one thousand nine hundred and twenty:
- (2) The expression "the schedule" means the schedule to this Order:
- (3) The expressions "the county of Chester" and "the county of Lancaster" mean respectively the administrative county of Chester and the administrative county palatine of Lancaster and the expressions "the Chester County Council" and "the Lancaster County Council" mean respectively the county council of the county of Chester and the county council of the county of Lancaster:
- (4) The expression "the councils" means the urban district council of Irlam and the rural district councils of Barton-upon-Irwell Bucklow and Warrington:
- (5) The expression "the transferred areas" means the parts of the several parishes or townships named in column 1 of the schedule which are transferred by this Order:
- (6) The expression "the maps" means the three maps each marked "Map of the boundaries of the counties of Chester and Lancaster as altered 1920" and sealed with the official seal of the Local Government Board:
- (7) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894:
- (8) The expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same.

Art. II. This Order shall except so far as is otherwise herein expressly provided and except so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the first day of April one thousand nine hundred and twenty:

Commence-
ment of
Order.

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Date of
operation of
Order for
registers of
electors &c.

Provided that for the purposes of the preparation of the spring registers of parliamentary and local government electors in the year one thousand nine hundred and twenty and of the lists of electors preliminary thereto of all proceedings preliminary or relating to any ordinary election of guardians or rural or urban district councillors to be held in that year and of the revision of the basis or standard of the county rate this Order shall come into operation on such earlier date as may be necessary.

Alteration of
county boun-
daries and
parishes.

Areas trans-
ferred from
Cheshire to
Lancashire.

Art. III. The boundary between the counties of Chester and Lancaster and the several parishes or townships named in column 1 of the schedule shall be altered as follows:—

(1)—(a) The parts of the township of Partington which are coloured pink and the part of the township of Carrington which is coloured light blue on the maps shall cease to form parts of the county of Chester and of the said townships and shall be transferred to and form parts of the county of Lancaster and of the township of Irlam;

(b) The parts of the parish of Warburton which are coloured purple and the part of the township of Partington which is coloured yellow on the maps shall cease to form parts of the county of Chester and of the said parish and township respectively and shall be transferred to and form parts of the county of Lancaster and of the township of Rixton with Glazebrook;

(c) The parts of the township of Carrington which are coloured dark blue on the maps shall cease to form parts of the county of Chester and of the township of Carrington and shall be transferred to and form parts of the county of Lancaster and of the township of Flixton:

Areas trans-
ferred from
Lancashire
to Cheshire.

(2)—(a) The parts of the township of Irlam which are coloured brown on the maps shall cease to form parts of the county of Lancaster and of the township of Irlam and shall be transferred to and form parts of the county of Chester and of the township of Partington;

(b) The part of the township of Irlam which is coloured light green and the parts of the township of Flixton which are coloured dark green on the maps shall cease to form parts of the county of Lancaster and of the said townships and shall be transferred to and form parts of the county of Chester and of the township of Carrington.

Deposit of
maps.

Art. IV.—(1) One of the maps shall be deposited in the office of the Local Government Board one shall be deposited by the clerk of the Chester County Council at his office and the other shall be

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deposited by the clerk of the Lancaster County Council at his office within fourteen days after the date of this Order. Copies of the map deposited with the clerk of the Lancaster County Council certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk to each of the councils to the Registrar-General to the Board of Inland Revenue to the Board of Trade to the Commissioners of Customs and Excise to the Postmaster-General and to the Board of Agriculture and Fisheries.

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 Order.*

(2) Copies of or extracts from any of the said maps deposited with the clerk of either county council certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the alteration in pursuance of this Order of the boundary of a county or other area and the said maps shall at all reasonable times be open to inspection by any person liable to any rate leviable within the transferred areas and any such person shall be entitled to a copy of or extract from any of the said maps certified by the clerk to be true on payment of a reasonable fee to be determined by the county council. All fees so received shall be carried to the credit of the county fund of the county.

Copies of
 map to be
 evidence.

Art. V.—(1) Lists of prisoners' writs process and particulars and all records and documents relating to or to be executed in connexion with any action or proceeding pending or existing at the commencement of this Order and appertaining to any of the transferred areas shall be delivered turned over or transferred and signed in like manner in all respects so nearly as circumstances admit as is required to be done upon a new sheriff coming into office in like manner as if the sheriff of the county to which the said area is transferred were as respects that area the new sheriff in succession to the sheriff of the county from which the area is transferred.

Transfer of
 lists of
 prisoners &c.

(2) Notwithstanding anything contained in this Order the following provisions shall have effect:—

As to office
 of county
 coroner for
 Knutsford
 Division.

Until the death resignation or removal from office of Hercules Campbell Yates the present holder of the office of coroner for the Knutsford Division of the county of Chester such part of the transferred areas as is at present comprised in that division shall continue to be within the district of the said coroner as if the same had remained part of the county of Chester and so long as the said coroner shall continue in office nothing in this Order shall diminish his powers duties salary or jurisdiction in relation to the areas now comprised in his district.

Art. VI. —(1) Any area by this Order transferred to any of the parishes or townships mentioned in column 1 of the schedule shall form part of the union and of the urban or rural district as the case may be of the electoral division of the petty sessional division and of the

Alteration of
 unions urban
 and rural
 districts
 electoral
 divisions &c

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Chester and or township in columns 2 3 4 5 and 6 of the schedule.
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Order.

(2) For the purposes of the election of urban district councillors the areas which by virtue of this Order are transferred to and form parts of the urban district of Irlam shall be added to and shall form parts of the Irlam Ward of that urban district.

5 & 6 Geo. 5.
c. lxxxii.

(3) The Irlam Electric Lighting Order 1915 which was confirmed by the Electric Lighting Orders Confirmation (No. 2) Act 1915 shall be read and have effect as if any reference in those provisions to the existing Urban District of Irlam applied to the Urban District as altered by this Order.

Byelaws &c.

Art. VII. Subject to the provisions of this Order—

- (1) All byelaws and regulations made by the Chester County Council or the Lancaster County Council or by any of the councils or their predecessors which immediately before the commencement of this Order are in force in the county of Chester or the county of Lancaster or in the district of any of the councils or in any such contributory place in the district as is affected by this Order shall be in force in and apply to that county district or contributory place as altered by this Order and all such byelaws and regulations as are in force immediately prior to that date in any of the transferred areas shall on that date cease to be in force in that area except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the council of the district from which the area is transferred or have been sent to the surveyor or clerk to that council one month at least before that date and have not been disapproved by that council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the council of the district to which any such area is transferred and as if that council and the district of that council were referred to therein instead of the district from which such area is transferred and the district of that council. Provided that any proceedings which if this Order had not been made might have been taken by either of the county councils or any of the councils for any offence committed before the commencement of this Order against any byelaws or regulations made by that council or their predecessors

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and in force immediately before the commencement of this Order in any of the transferred areas may be taken by the council of the county or district to which that area is transferred as the case may require as if those byelaws and regulations had remained in force and that council had been substituted therein for the council of the county or district from which the area is transferred:

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- (2) For the purposes and subject to the provisions of the Education Acts 1870 to 1918 any byelaws in force in any parish or township affected by this Order immediately before the commencement of this Order shall from and after that date apply to the parish or township as altered by this Order until revoked or altered and from and after that date any byelaws then in force in any of the transferred areas shall cease to be in force.

Art. VIII.—(1) The provisions of section 120 of the Act of 1888 shall apply to any clerk to justices and coroner and any officer of the county councils of Chester or Lancaster who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any such direct pecuniary loss as is in that section mentioned.

Education
byelaws.

(2) Every officer or servant other than an officer mentioned in subdivision (1) of this Article who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him for that pecuniary loss and in determining the said compensation regard shall be had to the conditions and other circumstances required by subsection (1) of section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned. A joint committee of the county councils of Chester and Lancaster shall determine to what local authority application shall be made for compensation and out of what fund the compensation if any shall be paid by that authority and the provisions of subsections (2) to (7) of that section shall apply with the substitution of the said authority for the county council and with such other alterations if any as may be required. Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

Compensa-
tion to exist-
ing officers.

(3) For the purposes of subdivisions (1) and (2) of this Article any officer or servant to whom those subdivisions apply and whose services are dispensed with or whose salary is reduced by the Secretary of State

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or either of the county councils or the standing joint committee of either of the counties or any other authority within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

(4) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

Art. IX. Subject to the provisions of this Order—

Property &c.
of councils.

(1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to any of the councils in relation exclusively to any part of any of the transferred areas shall by virtue of this Order be transferred to and vest in and attach to the council of the district to which such area is transferred and any property and liabilities vested in or attached to any of the councils in relation to any part of any of the transferred areas conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888:

Cesser of
jurisdiction
of councils.

(2) Each of the councils shall cease to exercise any powers or have any duties within any area which by virtue of this Order will cease to form part of their district:

Adjustment
of balances.

(3) Any balances which at the commencement of this Order are in the hands of the overseers of the poor of any parish or township affected by this Order and any sums collected by them after the commencement of this Order in respect of any rate made before that date and levied upon any rateable hereditament in any of the transferred areas shall be a matter for adjustment under section 62 of the Act of 1888:

Adaptation
of provisiont
as to adjust-
ment.

(4) For the purposes of the application of section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect as if in subsections (5) (6) and (7) thereof the expression "council" included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority

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to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Local Government Board may sanction:

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Provided that where the authority affected by this Order or by anything done in pursuance of this Order are the board of guardians of a poor law union section 62 of the Act of 1888 shall apply with respect to any necessary adjustment with the modifications specified in the First Schedule to the Poor Law (Dissolution of School Districts and Adjustments) Act 1903:

3 Edw. 7.
c. 19.

Provided also that for the purposes of the application of section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order so far as it relates to the alteration of the area of any parish or township affected by this Order that section shall have effect—

(a) As if the overseers of the parish or township were within the meaning of the said section as applied by this Article authorities affected by this Order; and

(b) As if the poor rate or any other rate leviable in pursuance of the said section as applied by this Article were substituted for any fund mentioned in the section; and

(c) As if for subsections (6) and (7) of the said section there were substituted the subsections hereunto appended (that is to say):—

“ (6) If it is necessary for the purpose of giving
“ effect to any agreement or award for an adjust-
“ ment that a separate rate shall be levied in part
“ of a parish only the agreement or award may
“ authorise the making of such a separate rate as
“ if it were a poor rate and as if the part of the
“ parish on which it is to be levied were a whole
“ parish.”

“ (7) Any capital sum paid for the purposes of any
“ adjustment or in pursuance of any order or award
“ of an arbitrator shall be applied by such person in
“ such manner and for such purpose as the Local
“ Government Board may authorise or direct.”

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(5) For the purposes of any such adjustment any balances standing at the commencement of this Order in the accounts of the guardians of the poor of any poor law union or in the accounts of the council of any rural district as the case may be in favour of any parish or township affected by this Order shall be deemed to be the property of the overseers of the poor of such parish or township and any balances standing on the said date against any such parish or township shall be deemed to be a liability of the overseers of the poor of such parish or township.

*Actions &c.
not to abate.*

Art. X. — (1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against any of the councils in relation exclusively to any part of any of the transferred areas shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the council of the district to which such area is transferred.

*Saving for
contracts &c.*

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by any of the councils or their predecessors in relation exclusively to any part of any of the transferred areas shall be of as full force and effect against or in favour of the council of the district to which such area is transferred and may be continued and enforced as fully and effectually as if instead of any of the councils or their predecessors the council of the district to which such area is transferred had done or suffered the same or been a party thereto.

*Adoptive
Acts and
powers un-
der Public
Health Acts
Amendment
Act 1907.*

Art. XI. — (1) The provisions of any public general Act which have been adopted by any of the councils or their predecessors and are in force in the district of that council immediately before the commencement of this Order shall be in force in and apply to such district as altered by this Order as if the same had been adopted therein and the provisions of any such Act which on the said date are in force in any of the transferred areas shall subject to the provisions of this Order cease to be in force in and apply to that area.

(2) Subject to the provisions of any order which the Local Government Board or the Secretary of State may hereafter make the provisions of any order made by the Local Government Board or by the Secretary of State and declaring to be in force in any district or in any contributory place affected by this Order any parts or sections of the Public Health Acts Amendment Act 1907 shall have and shall be deemed always to have had effect as if any reference in those provisions to the said district or contributory place extended and

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applied to the district or contributory place as the case may be as altered by this Order and as if the said parts and sections were accordingly declared to be in force in the district or contributory place as the case may be as so altered and the provisions of any order made by the Local Government Board or by the Secretary of State and declaring to be in force in any district or contributory place affected by this Order any parts or sections of the said Act shall cease to apply to any of the transferred areas and subject to the provisions of this Article the parts and sections declared by any such order to be in force shall cease to be in force in any such area.

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(3) Nothing in subdivisions (1) and (2) of this Article shall—

- (a) affect the operation prior to the commencement of this Order of any such provisions as are referred to in those subdivisions or anything duly done or suffered thereunder; or
- (b) affect any right privilege obligation or liability acquired accrued or incurred under any such provisions; or
- (c) affect any penalty forfeiture or punishment incurred in respect of any offence committed against any such provisions; or
- (d) affect any investigation legal proceeding or remedy in respect of any such right privilege obligation liability penalty forfeiture or punishment as aforesaid.

Art. XII. All the powers rights duties capacities liabilities and obligations of an urban district council and all the powers in relation to the chargeability of expenses with which the council of any rural district affected by this Order are now invested in pursuance of any order issued by the Local Government Board under the Public Health Acts in respect of any contributory place affected by this Order shall be deemed to vest in and attach to the said council in respect of the said contributory place as altered by this Order.

Powers
under Public
Health Acts.

Art. XIII. Subject to the provisions of any order which the Local Government Board may hereafter make the provisions of any order heretofore made by the Local Government Board and conferring upon the urban district council of Irlam any of the matters mentioned in section 33 or section 34 of the Act of 1894 and in that order shall be deemed to have effect as if any reference in those provisions to the existing township of Irlam extended and applied to that township as altered by this Order.

Powers under
sections 33
and 34 of
Act of 1894.

Art. XIV. Any order made under the Shop Hours Act 1904 or under the Shops Act 1912 and in force immediately before the commencement of this Order in any area affected by this Order shall subject to the provisions of the Shops Act 1912 remain in force and apply to the area to which it applied immediately before the commencement of this Order.

Orders made
under the Shop
Hours Act 1904
and the Shops
Act 1912.
4 Edw. 7. c. 31.
2 Geo. 5. c. 3.

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Order.*

*Adjustment
for purposes
of Licensing
(Consolida-
tion) Act
1910.*

Art. XV.—(1) An equitable adjustment shall be made between the county of Chester and the county of Lancaster respecting the interest of the transferred areas in any compensation fund constituted under Section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act.

(2) Such adjustment shall be made by agreement between the Compensation Authority (as defined by the Licensing (Consolidation) Act 1910) for the county of Chester and for the county of Lancaster within twelve months from the commencement of this Order or in default of agreement by an arbitrator appointed by the Secretary of State.

(3) For the purpose of such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of that Act shall apply accordingly.

*Parish
councils.*

Art. XVI.—(1) Subject to the provisions of this Order any powers and duties transferred by the Act of 1894 to the parish councils of the existing townships of Partington and Carrington shall so far as regards the parts of those townships which by virtue of this Order will form parts of the urban district of Irlam be vested in exerciseable by and imposed on the persons and authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the said parts had been included in a parish in an urban district on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred so far as regards the said parts for the purpose or by virtue of the said powers and duties shall by virtue of this Order be transferred to and vest in and attach to the persons and authorities aforesaid. Any property or liabilities of the said parish councils held or incurred otherwise than by virtue or for the purposes of the powers or duties aforesaid shall so far as regards the said parts by virtue of this Order be transferred to and vest in and attach to the urban district council.

(2) The parish councils of the existing parishes or townships of Carrington, Flixton, Partington, Rixton with Glazebrook and Warburton shall be deemed to have been elected and shall be the parish councils for those parishes or townships respectively as altered by this Order.

*Valuation
lists.*

Art. XVII. Until new valuation lists are in force such portions of the valuation lists of each of the parishes or townships from which any area is transferred by this Order as relate to hereditaments in any such area shall be deemed to be portions of the valuation list of the parish or township to which that area is transferred.

*County rate
basis.*

Art. XVIII.—(1) Subject to any future revision—

(a) The basis or standard of the county rate for the county of Chester shall be deemed to be altered by the addition to the amount appearing in that basis or standard as the

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total annual value of the property in each of the parishes or townships mentioned in Part I. of the schedule of such a sum as will represent the annual value of the property in the area or areas transferred to the parish or township by this Order and by the deduction from the amount appearing in that basis or standard of such a sum as will represent the annual value of the property in the area or areas transferred from the parish or township by this Order:

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- (b) The basis or standard of the county rate for the county of Lancaster shall be deemed to be altered by the addition to the amount appearing in that basis or standard as the total annual value of the property in each of the townships mentioned in Part II. of the schedule of such a sum as will represent the annual value of the property in the area or areas transferred to the township by this Order and by the deduction from the amount appearing in that basis or standard of such a sum as will represent the annual value of the property in the area or areas transferred from the township by this Order.

(2) For the purposes of this Article the annual value of the property in any area transferred to or from a parish or township by this Order shall in each case be the amount which bears the same relation to the total annual value of the existing parish or township as the assessable value of the property in the area bears to the total assessable value of property in the existing parish or township and the total annual value of the existing parish or township shall be the amount appearing as such in the basis or standard of the county rate.

(3) For the purposes of this Article assessable value means one-half of the rateable value according to the valuation list for the time being in force of the agricultural land together with the rateable value according to that list of the buildings and other hereditaments not being agricultural land in the existing parish or township or the transferred area as the case may require.

Art. XIX. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect (that is to say):—

Settlement
and removal
of the poor.

- (1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in any of the existing parishes or townships of Carrington Flixton Irlam Partington Rixton with Glazebrook or Warburton by reason of any residence completed or in the course of completion or of any act or thing done or in the course of being done or of any status condition right

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or privilege acquired or created or in the course of acquisition or creation—

(i) in the parts of the existing townships of Carrington and Partington which by virtue of this Order will form parts of the township of Irlam; or

(ii) in the parts of the existing parishes or townships of Partington and Warburton which by virtue of this Order will form parts of the township of Rixton with Glazebrook; or

(iii) in the parts of the existing township of Carrington which by virtue of this Order will form parts of the township of Flixton; or

(iv) in the parts of the existing township of Irlam which by virtue of this Order will form parts of the township of Partington; or

(v) in the parts of the existing townships of Irlam and Flixton which by virtue of this Order will form parts of the township of Carrington; or

(vi) in the remaining part of the existing township of Carrington; or

(vii) in the remaining part of the existing township of Flixton; or

(viii) in the remaining part of the existing township of Irlam; or

(ix) in the remaining part of the existing township of Partington; or

(x) in the remaining part of the existing parish of Warburton; or

(xi) in the existing township of Rixton with Glazebrook

shall be deemed to have acquired or to be in the course of acquiring in the first and eighth cases a settlement in the township of Irlam in the second and eleventh cases a settlement in the township of Rixton with Glazebrook in the third and seventh cases a settlement in the township of Flixton in the fourth and ninth cases a settlement in the township of Partington in the fifth and sixth cases a settlement in the township of Carrington and in the tenth case a settlement in the parish of Warburton and as if in each case the specified part or parts of the existing parish or township were and had always been a part of the parish or township as constituted by this Order in which by virtue

[9 & 10 GEO. 5.] *Local Government Board's* [Ch. lxxviii.]
Provisional Order Confirmation (No. 4) Act, 1919.

of this Order the person shall be deemed to have acquired or to be in the course of acquiring a settlement :

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- (2) Every person who at the date of the operation of this Order has acquired or is in the course of acquiring a status of irremovability from the Barton - upon - Irwell Union the Bucklow Union or the Warrington Union as the case may be by reason of residence—

(i) in the parts of the existing townships of Carrington and Partington which by virtue of this Order will form parts of the township of Irlam ; or

(ii) in the parts of the existing parishes or townships of Partington and Warburton which by virtue of this Order will form parts of the township of Rixton with Glazebrook ; or

(iii) in the parts of the existing township of Carrington which by virtue of this Order will form parts of the township of Flixton ; or

(iv) in the parts of the existing township of Irlam which by virtue of this Order will form parts of the township of Partington ; or

(v) in the parts of the existing townships of Irlam and Flixton which by virtue of this Order will form parts of the township of Carrington ; or

(vi) in the remaining part of the existing township of Carrington ; or

(vii) in the remaining part of the existing township of Flixton ; or

(viii) in the remaining part of the existing township of Irlam ; or

(ix) in the remaining part of the existing township of Partington ; or

(x) in the remaining part of the existing parish of Warburton ; or

(xi) in the existing township of Rixton with Glazebrook

shall be deemed to have acquired or to be in the course of acquiring a status of irremovability in the first and eighth cases from the Barton-upon-Irwell Union by reason of residence in the township of Irlam in the second and eleventh cases from the Warrington Union by reason of residence in the township of Rixton with Glazebrook in the third and seventh cases from the Barton-upon-Irwell Union by reason of residence in the township of Flixton in the fourth and ninth cases from the Bucklow Union by reason of residence

[Ch. lxxviii.] *Local Government Board's* [9 & 10 GEO. 5.]
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in the township of Partington in the fifth and sixth cases from the Bucklow Union by reason of residence in the township of Carrington and in the tenth case from the Bucklow Union by reason of residence in the parish of Warburton.

Saving for
existing
registers of
electors &c.

Art. XX.—(1) For the purposes of the registers of parliamentary electors and of jury lists the parishes or townships affected by this Order shall be deemed to continue unaltered until the next registers and lists after the commencement of this Order come into force.

(2) For the purposes of any election under the Act of 1888 or the Act of 1894 for any area affected by this Order and of the holding of any parish meeting the clerk of the Chester County Council or the clerk of the Lancaster County Council as the case may be shall in relation to any area in the administrative county of which he is clerk to the county council if and when necessary cause the register of local government electors in force at the commencement of this Order to be altered in such manner as may be necessary to give effect to the provisions of this Order and the overseers of the poor shall render such assistance as may be required for the purpose.

(3) Any expenses incurred by a clerk to a county council in connexion with the alteration in pursuance of this Article of any register of electors shall be paid by the county council whose officer the clerk is.

(4) If any difficulty arises in giving effect to the provisions of this Order so far as they relate to any election required to be held in the year one thousand nine hundred and twenty for any area affected by this Order the Local Government Board may by order make such provision as they consider necessary for removing such difficulty.

Saving for
contribution
orders and
precepts.

Art. XXI. Notwithstanding the alteration in the areas of the parishes or townships effected by this Order all contribution orders made by the guardians of the poor of the Barton-upon-Irwell Bucklow and Warrington Unions respectively and all precepts issued by the rural district councils of Barton-upon-Irwell Bucklow and Warrington respectively before the commencement of this Order shall be as valid in law as if this Order had not been made.

Arrears of
rates.

Art. XXII. All sums in respect of rates made by the overseers of the poor of any parish or township affected by this Order and due or owing at the commencement of this Order shall be collected and recovered by the overseers of the poor of that parish or township as if this Order had not been made.

Saving for
ecclesiastical
divisions and
charities.

Art. XXIII. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

[9 & 10 GEO. 5.] *Local Government Board's* [Ch. lxxviii.]
Provisional Order Confirmation (No. 4) Act, 1919.

Art. XXIV. Notwithstanding anything in this Order an authority affected by this Order shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Art. XXV. This Order may be cited as the Counties of Chester and Lancaster (Alteration of County Boundaries) Order 1919.

A.D. 1919.
*Chester and
Lancaster
Order.*
Consent of
Treasury to
borrowing
during war.)
Short title.

The SCHEDULE above referred to.

Names of Parishes or Township.	Names of Unions.	Names of Urban or Rural Districts.	Names of Electoral Divisions.	Names of Petty Sessional Divisions.	Names of Coroners' Districts.
1.	2.	3.	4.	5.	6.
PART I.					
Carrington -	Bucklow	Bucklow Rural District.	Bowden	Altrincham	Knutsford.
Partington -	Bucklow	Bucklow Rural District.	Lymm	Altrincham	Knutsford.
Warburton -	Bucklow	Bucklow Rural District.	Lymm	Altrincham	Knutsford.
PART II.					
Flixton -	Barton-upon-Irwell.	Barton-upon-Irwell Rural District.	Barton	Manchester	Salford.
Irlam -	Barton-upon-Irwell.	Irlam Urban District.	Barton	Manchester	Salford.
Rixton with Glazebrook.	Warrington	Warrington Rural District.	Winwick	Warrington	West Derby.

Given under the seal of office of the Local Government Board
this Second day of June one thousand nine hundred and
nineteen.

(L.S.)

CHRISTOPHER ADDISON President.
H. C. MONRO Secretary

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